

OREGON STATE HOSPITAL

POLICY

SECTION 5: Human Resources **POLICY: 5.007**

SUBJECT: ADA and Reasonable
Accommodation in Employment

POINT PERSON: CFO/COO

APPROVED: Sara Walker, MD

DATE: JANUARY 15, 2025


Interim Superintendent

SELECT ONE: ☐ New policy ☐ Minor/technical revision of
existing policy
☒ Reaffirmation of existing policy ☐ Major revision of existing policy

I. PURPOSE AND APPLICABILITY

- A. This policy describes reasonable accommodation including, but not limited to, recruitment, hire, training for applicants and staff with disabilities to ensure equal access and equal opportunity in employment.
- B. This policy applies to all staff.

II. POLICY

- A. Oregon State Hospital (OSH) adopts Department of Administrative Services (DAS) policy 50.020.10, "ADA and Reasonable Accommodation in Employment" and Shared Services policy 606-034 "Reasonable Accommodation."
- B. OSH follows all applicable regulations, including federal and state statutes and rules; Oregon DAS, Shared Services, and Oregon Health Authority (OHA) policies; and relevant accreditation standards. Such regulations supersede the provisions of this policy unless this policy is more restrictive.
- C. Staff who fail to comply with this policy or related policy attachments or protocols may be subject to disciplinary action, up to and including dismissal.

III. DEFINITIONS

- A. "Staff" includes employees, volunteers, trainees, interns, contractors, vendors, and other state employees assigned to work at Oregon State Hospital (OSH).

IV. RELATED OSH POLICIES AND PROTOCOLS

- 1.012 Non-Discrimination and Alternate Language Access
- 5.008 Equal Opportunity Employment or Non-Discrimination
- 5.021 Background Checks for Staff
- 5.023 Nepotism
- 5.025 Maintaining A Professional Workplace

V. REFERENCES

42 U.S.C. §12101 *et seq.*

Civil Rights Act of 1991

Department of Administrative Services (2019). *ADA and Reasonable Accommodation in Employment*, 50.020.10.

Shared Services (2020). *Reasonable Accommodation*, 606-034.

Oregon Revised Statute § 240.145

Oregon Revised Statute § 240.240

Oregon Revised Statute § 240.250

Oregon Revised Statute §§ 659A.103 -145

Oregon Revised Statute § 243.305

Oregon Revised Statute § 243.315

The Americans with Disabilities Act (ADA) of 1990, as amended by the Americans with Disabilities Act Amendments Act (ADAAA) of 2008